

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 06, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ALYSSA R. v. FAIRFIELD SUISUN UNIFIED SCHOOL DISTRICT
Case No. CU23-00257**

Motion to Deem Admitted Matters Requests for Admission (Set Two)

TENTATIVE RULING:

Defendant's unopposed motion to deem Requests for Admission (Set Two) to be admitted is GRANTED.

Plaintiff ALYSSA R. is deemed to have admitted each of the requests for admission set forth in Defendant's Requests for Admission (Set Two (misnumbered set one)).

Defendant is awarded \$600 in reasonable attorneys' fees and costs as sanctions to be paid jointly and severally by Plaintiff and Plaintiff's counsel in 30 days.

Because discovery compliance continues to be an issue that is not resolved despite prior award of sanctions and court directives to meet and confer, Plaintiff and Plaintiff's counsel is on notice that future discovery violations may result in issue, evidentiary or terminating sanctions in addition to monetary sanctions.

Notably, the proof of service submitted by Defendant with the moving papers is not as clear as it could be. An updated declaration shall be immediately filed by Defendant confirming the motion was emailed to matt@procivilaw.com and whether it was additionally mailed by U.S. Mail to attorney Matt Harrison given only the box for email was checked and another person's email is directly provided. The court understands the proof of service for the motion included email service on matt@procivilaw.com. If

this understanding is incorrect, this order is void. In the future, please pay greater attention to the contents and clarity of your proof of service.

Additionally, it appears that a future case management conference date was not ordered on May 13, 2026. The parties are noticed that a case management conference two is scheduled for **October 15, 2026 at 8:30**. Updated CMC statements shall be filed 15 days in advance. The parties were previously ordered to submit a stipulated discovery schedule. Plaintiff is tasked with taking the lead and preparing a joint stipulated discovery schedule to be filed by September 21, 2026.

Prevailing party to prepare the order after hearing and submit directly to the court and is excused from complying with California Rules of Court, rule 3.1312.

BROWN v. FSL MAGNOLIA COURT, LLC, et al.
Case No. CU24-04807

Motion by Defendants to Strike Class Claims

TENTATIVE RULING

Defendants motion to strike the class claims is DENIED.

Defendant brings this motion pursuant to California Rules of Court, rule 3.767(a)(3) to challenge the ability of Plaintiff to serve as a representative in this action given that she has a separate suit alleging discrimination that has been removed to federal court.

CRC 3.1322(a) requires that a notice of motion to strike quote completely in numbered fashion the parts of the pleading the motion seeks to strike.

Contents of notice A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.

Defendants' notice does not quote any of the "class claims" the motion seeks to strike. It does not even identify the proper pleading from which it seeks to strike them (referring to the "Complaint", not the currently operative first amended complaint).

CRC §3.1322(b) requires a motion to strike to be made by the time of answer.

Timing A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as the demurrer.

Defendants' answer was filed in September 2024, 21 months before this motion to strike was filed.